

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANTE SMITH,

Petitioner

VS.

CIARRA WALKER-SMITH,

Respondent

) Case Number: FPT-23-378122

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Dante Smith (Father) and Respondent Ciarra Walker-Smith (Mother).
- 2) On June 5, 2026, Mother filed an Order to Show Cause and Affidavit for Contempt alleging 5 counts of contempt committed by Father. The matter is set for hearing on July 16, 2026.
- 3) As of July 9, 2026, no proof of personal service of the Order to Show Cause and Affidavit for Contempt has been filed with the Court.

B. Findings and Order

- 1) Per *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, personal service of Order to Show Cause and Affidavit for Contempt-on-contempt citee (i.e., Father) is required.
- 2) As such, the matter is hereby **continued to August 27, 2026, at 9:00 a.m. in Department 403** to permit Mother to effectuate personal service on Father.
- 3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CELIA RIVERA,

Petitioner

VS.

VICTOR PALMER SR,

Respondent

) Case Number: FDI-21-794648

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: PRODUCTION OF WITHHELD COURT DOCUMENTS WITHHELD
BY RESPONDENT AND STAY OF DEFAULT JUDGMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Celia Rivera and Respondent Victor Palmer Sr.
- 2) On June 8, 2026, Petitioner filed a Request for Order seeking:
 - a. A court order compelling Respondent's attorney, Wendy Marie Gibson, to immediately produce copies of the following documents:
 - i. The Default Request/Judgment submitted to the Court on or around May 21, 2026; and
 - ii. The Resubmission of the Default Request/Judgment received by the Court on or around May 21, 2026.
 - b. The Court to pause entry of the final Default Judgment until Petitioner has reviewed both documents and confirmed they accurately reflect the signed Marital Settlement Agreement.

1 3) On June 30, 2026, Respondent filed a Responsive Declaration wherein he asks the Court to deny
2 Petitioner's requests. Respondent asserts that he provided Petitioner with copies of everything he
3 submitted to the Court. Respondent confirms that the Court rejected the submitted documents (as
4 recently as June 25, 2026) because the wrong Court was erroneously listed.

5 **B. Findings and Order**

- 6 1) Petitioner's Request for Order filed June 8, 2026 is DENIED without prejudice as Petitioner's
7 requested relief is not yet ripe. Further, Petitioner's request appears to be moot given that
8 Respondent's Default Request/Judgment was rejected by the Court.
- 9 2) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISMARA ZUGUEY MENDOZA AMEZCUA,

Petitioner

VS.

EMMANUEL ROBERTO MENDOZA

GONZALEZ,

Respondent

) Case Number: FDI-22-797316

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ismara Amezcua and Respondent Emmanuel Gonzalez.
- 2) On June 3, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt, alleging non-payment of child support from the Court order filed on April 7, 2025. However, the pleading does not sufficiently identify the specific alleged counts of contempt.
- 3) On June 11, 2026, a “Proof of Unsuccessful Service-Civil” was filed with the Court.
- 4) On June 22, 2026, a valid Proof of Personal Service was filed with the Court indicating the Order to Show Cause and Affidavit for Contempt and all required documentation were personally served on Respondent on June 22, 2026, at 8:58 a.m.

B. Findings and Order

- 1) The Court finds the Order to Show Cause and Affidavit for Contempt filed on June 3, 2026 is procedurally defective as it does not sufficiently identify the specific alleged counts of contempt.

- 1 2) The Court also notes the Department of Child Support Services (DCSS) is a party to this action.
2 The Court does not believe DCSS was served, or Petitioner sought out DCSS's permission to
3 prosecute contempt for non-payment of child support.
- 4 3) As such, the Order to Show Cause and Affidavit for Contempt filed on June 3, 2026, is hereby
5 DISCHARGED.
- 6 4) **No appearances are required on July 16, 2026.**
- 7 5) The Court will prepare the Findings and Order Regarding Contempt (Family Law) (form FL-
8 415).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AYUSHA KHANNA,

Petitioner

VS.

CANDICE KHANNA,

Respondent

) Case Number: FDI-23-798490

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : CHANGE OF SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES
AND COSTS, CONTINUE AND/OR APPROPRIATELY SEQUENCE APRIL 13, 14, AND 24, 2026
TRIAL DATES SO PARITY , TEMPORARY SUPPORT, AND COUNSEL ISSUES CAN BE
ADDRESSED BEFORE ANY MOVE-AWAY TRIAL PROCEEDS.

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ayush Khanna (Father) and Respondent Candice Khanna (Mother).
They share one minor child: Ajay River Khanna (DOB: 06/17/19).
- 2) On August 4, 2025, the Court issued a 5-year Domestic Violence Restraining Order (DVRO)
against Mother, protecting Father and the minor child.
- 3) On March 19, 2026, the Court denied Mother's requests for pendente lite spousal support and
attorney's fees.
- 4) On April 9, 2026, Mother filed an ex parte Request for Order wherein she requested the following
emergency relief:
 - a. Spousal support in the amount of \$3,499.00 per month.
 - b. Attorney's fees in the amount of \$25,000.00.

- 1 c. A continuance of trial dates (this request is now moot as the trial has already occurred).
- 2 5) The Court denied the emergency request and set the matter for hearing on shortened time. The
- 3 matter was set for hearing on April 13, 2026, in Department 405 (i.e., the trial department).
- 4 6) On April 13, 2026, the Court (Department 405) commenced the trial but did not adjudicate any of
- 5 the financial requests. Day two of the trial was set for April 24, 2026.
- 6 7) On April 24, 2026, the Court continued with the trial, but noted that the pending financial issues
- 7 were to be heard in the home department (Department 403) on July 16, 2026, including pendente
- 8 lite spousal support and attorney's fees (all related to the underlying Request for Order filed on
- 9 April 9, 2026).
- 10 8) On July 7, 2026, Mother filed an updated Income and Expense Declaration. Mother indicates her
- 11 income is zero and notes she has \$3,890.00 in expenses, which are entirely paid by others.
- 12 9) As of July 9, 2026, Father has not filed a Responsive Declaration or updated Income and Expense
- 13 Declaration. However, the Court reviewed Father's Income and Expense Declaration filed on
- 14 March 9, 2026, which states his income is \$17,483.34 per month.

15 **B. Findings and Order**

- 16 1) The Court DENIES Mother's requests for pendente lite spousal support and attorney's fees as the
- 17 Court previously ruled on these same requests merely three weeks prior to Mother filing the
- 18 instant, identical request.
- 19 2) The Court views Mother's Request for Order filed on April 9, 2026, as an untimely motion for
- 20 reconsideration of its March 19, 2026 orders related to pendente lite spousal support and
- 21 attorney's fees.
- 22 3) Nonetheless, the Court finds there are no additional factors, which were not considered nor
- 23 available, when it considered and denied Mother's request for pendente lite spousal support and
- 24 attorney's fees on March 19, 2026.
- 25 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

REMY TAHIR GOODE,	)	Case Number: FDI-23-798739
	)	
Petitioner	)	Hearing Date: July 16, 2026
	)	
VS.	)	Hearing Time: 9:00 AM
	)	
LEONARD GOODE,	)	Department: 403
	)	
Respondent	)	Presiding: BOBBY P. LUNA
	)	

REQUEST FOR ORDER RE ENFORCEMENT OF ORDER, FAMILY CODE 271 SANCTIONS

TENTATIVE RULING

The Court finds good cause to VACATE the 7/16/26 hearing as the pending issues are resolved. **No appearances are required on 7/16/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRETT LAMY,

Petitioner

VS.

LIANA DIMAURO,

Respondent

) Case Number: FDI-25-800840

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Brett Lamy and Respondent Liana DiMauro.
- 2) On June 2, 2026, Respondent filed an Order to Show Cause and Affidavit for Contempt alleging one count of contempt for failure to pay court ordered attorney fees.
- 3) On June 29, 2026, Respondent filed a Proof of Personal Service of the Order to Show Cause and Affidavit for Contempt.

B. Findings and Order

- 1) The Court reviewed the underlying order issued on March 3, 2026 awarding \$30,000.00 in attorney's fees payable by Petitioner to Respondent, which the Court notes does not impose a payment deadline for Petitioner to pay the \$30,000.00 to Respondent.
- 2) Given no actual deadline for payment was ordered, Petitioner is not (and cannot possibly be) in contempt of the existing order.
- 3) As such, the Order to Show Cause and Affidavit for Contempt filed June 2, 2026 is hereby DISCHARGED as it is clear, on its face, that Petitioner has not violated the Court's order.

1 4) **No appearances are required on July 16, 2026.**

2 5) Counsel for Respondent shall prepare the Findings and Order Regarding Contempt (Family Law)
3 (form FL-415).

4 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN D EVELAND,

Petitioner

VS.

WILLIAM T BALDWIN JR,

Respondent

) Case Number: FDI-25-802148

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL, HOME
TO BE LISTED FOR SALE AND THE PROCEEDS HELD IN TRUST

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner John D. Eveland and Respondent William T. Baldwin Jr.
- 2) On 11/4/25, Petitioner filed a Petition for Dissolution of Domestic Partnership.
- 3) On 3/2/26, Petitioner filed a Proof of Service of Summons indicating personal service was effectuated on 1/2/26.
- 4) Respondent did not file a Response.
- 5) On 5/1/26, Petitioner filed an ex parte Request for Order seeking to compel the sale of the real property located at 877 Montecito Drive, Los Angeles, CA 94131 (the home). Petitioner asserts that he purchased the home prior to the parties becoming registered domestic partners and paid the mortgage in full until 2020 when the parties added Respondent to the title and began jointly paying the mortgage. Petitioner states he had to move out of the home due to his poor health condition, which requires he reside in a supportive care home in San Francisco. Petitioner claims that Respondent continues to reside in the home and refuses to sell it; however, funds to pay the

1 mortgage and carrying costs are depleted. Petitioner further asserts that he received notice the
2 mortgage has not been paid since November of 2025 and the home is at risk of foreclosure and
3 waste (hoarding and rodent infestation). Petitioner states both parties are of advanced age (early
4 80s) and cannot care for the home. Petitioner requests the Court order Respondent to vacate the
5 home within 30 days and immediately list the home for sale with Petitioner authorized to select
6 the relator.

7 6) On 5/1/26, the Court denied Petitioner's request for emergency relief and set the matter on
8 shortened time on 6/2/26. The Court made a finding that the ex parte Request for Order was
9 served on Respondent.

10 7) On 5/28/26, Petitioner filed a Proof of Service indicating the ex parte Request for Order was
11 served on Respondent by personal service on 5/22/26.

12 8) Respondent did not file a Responsive Declaration.

13 9) On 6/01/26, the Court made the following orders:

14 a. Family Code section 2108 provides the Court's authority "to order the liquidation of
15 community or quasi-community assets to avoid unreasonable market or investment risks"
16 upon a showing of good cause; however, the Court is prohibited from doing so unless
17 "the appropriate declaration of disclosure has been served by the moving party."

18 b. The Court finds Petitioner made a showing of good cause; however, Petitioner did not
19 file a Declaration Regarding Service of Declaration of Disclosure and Income and
20 Expense Declaration (form FL-141) as mandated by Family Code section 2104.
21 Therefore, the requirement for the moving party to serve the appropriate disclosures
22 under Family Code Section 2108 has not been met.

23 c. Accordingly, this hearing is continued to 7/16/26 at 9 AM in Dept. 403.

24 d. At least 10 days in advance of the hearing, Petitioner shall complete his preliminary
25 declaration of disclosure by:

26 i. Serving on Respondent all of the following: Preliminary Declaration of
27 Disclosure (form FL-140), current Income and Expense Declaration (form FL-
28 150), completed Schedule of Assets and Debts (form FL-142) or Community and
29 Separate Property Declarations (form FL-160) with appropriate attachments, all

1 tax returns filed by the party in the two years before service of the preliminary
2 disclosures, and all other required information under Family Code section 2104.

3 ii. Filing Declaration Regarding Service of Declaration of Disclosure and Income
4 and Expense Declaration (form FL-141) with the Court.

5 10) On 7/9/26, Petitioner filed a Preliminary Declaration Regarding Service of Declaration of
6 Disclosure and Income and Expense Declaration.

7 **B. Findings and Order**

- 8 1) Petitioner's Request for Order filed 5/1/26 is GRANTED.
- 9 2) Respondent shall vacate the home located at 877 Montecito Drive, Los Angeles, CA 94131 by
10 5:00 p.m. on 8/14/26.
- 11 3) Petitioner shall have exclusive use and possession of residence located at 877 Montecito Drive,
12 Los Angeles, CA 94131 effective at 5:01 p.m. on 8/14/26.
- 13 4) The home located at 877 Montecito Drive, Los Angeles, CA 94131 shall be listed for sale no later
14 than 8/30/26.
- 15 5) Petitioner is authorized to unilaterally select the realtor for listing of the property for sale.
- 16 6) The parties shall follow the selected realtor's advice regarding any work that needs to be
17 completed to maximize sale proceeds. The Court reserves jurisdiction over any credits or charges
18 for such work paid by either party to the time of trial.
- 19 7) The proceeds from the sale shall be immediately placed in a blocked interest-bearing account
20 until further order of the court, or written agreement between the parties.
- 21 8) The Court will prepare the Findings and Order After Hearing.
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